

Shri Prabhukant vs Smt.Shivaleela on 19 July, 2023

Author: B.M.Shyam Prasad

Bench: B.M.Shyam Prasad

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NC: 2023:KHC-K:5547-DB

MFA No. 202437 of 2019

IN THE HIGH COURT OF KARNATAKA,

KALABURAGI BENCH

DATED THIS THE 19TH DAY OF JULY, 2023

PRESENT

THE HON'BLE MR. JUSTICE B.M.SHYAM PRASAD

AND

THE HON'BLE MR. JUSTICE UMESH M ADIGA

MISCL. FIRST APPEAL NO.202437 OF 2019 (FC-DIV)

BETWEEN:

SHRI PRABHUKANT

S/O HUSANAPPA DHANNA

AGE: 39 YEARS, OCC: GOVT. PRIMARY SCHOOL

TEACHER R/O NEAR GOVT. SCHOOL, BHANKUR

TQ:CHITTAPUR DIST: KALABURAGI

...APPELLANT

Digitally signed by

SOMANATH

PENTAPPA MITTE

Location: HIGH

COURT OF

KARNATAKA

(BY SRI DEEPAK V BARAD, ADVOCATE)

AND:

SMT.SHIVALEELA

W/O PRABHUKANT DHANNA

(D/O RARMCHANDRA TIRLAPUR)

AGE: 34 YEARS, OCC: GOVT. HIGH SCHOOL

TEACHER, R/O KARNATAKA HOUSING BOARD

COLONY, MIG 22, P & T QUARTERS

(NEAR GANADEVTE TEMPLE) KALABURAGI-585102

...RESPONDENT

THIS MFA IS FILED UNDER SECTION 19(1) OF FAMILY COURT ACT R/W ORDER 41 RULE 1 OF THE CPC, PRAYING TO ALLOW THIS MISCELLANEOUS FIRST APPEAL AND TO SET ASIDE THE JUDGMENT AND DECREE DATED 08.11.2019 PASSED BY THE LEARNED DISTRICT JUDGE, FAMILY COURT, KALABURAGI IN M.C.NO.261/2017 AND CONSEQUENTLY TO ALLOW THE DIVORCE PETITION FILED BY THE APPELLANT BY DISSOLVING THE MARRIAGE OF THE APPELLANT AND RESPONDENT SOLEMNIZED ON 21.06.2012, IN THE INTEREST OF JUSTICE AND EQUITY.

THIS APPEAL COMING ON FOR ORDERS THIS DAY, B.M.SHYAM PRASAD J., DELIVERED THE FOLLOWING:

JUDGMENT

This appeal is filed impugning the judgment and decree dated 08.11.2019 in M.C.No.261/2017 on the file of the District Judge, Family Court, Kalaburagi [for short, 'the Family Court']. The appellant's petition under Section 13 (1) (ia) and (ib) of the Hindu Marriage Act, 1955 [for short, 'the H.M. Act'] is dismissed by the impugned judgment.

2. This Court, before advertng through the undisputed facts and recording the rival submissions, must bring on record certain interim arrangements that have been made in the present proceedings as also certain NC: 2023:KHC-K:5547-DB decisions in the pending matters during the pendency of this appeal.

3. This Court, on 26.08.2020, after having interaction with the appellant and the respondent with the assistance of the learned counsels for the parties, has provided for certain arrangement on an experimental basis. This Court has directed the appellant, in consultation with the respondent, to establish a matrimonial home in Kalaburagi and calling upon both the appellant and the respondent to recommence their matrimonial life directing the appellant to incur the running expenses until further orders. This Court has also directed both the appellant and the respondent to treat each other with love and affection and due deference ensuring the congenial atmosphere for the child.

4. This Court, to ensure that this arrangement prevails without acrimony, has stayed the criminal proceedings pending as also the execution proceedings emanating from an order for interim maintenance under NC: 2023:KHC-K:5547-DB Section 125 of Cr.P.C. These cases are in C.C.No.440/2018 and E.P.No.404/2019. The appellant is also called upon to deposit a sum of Rs.75,000/- in long term postal fixed deposit in the name of the minor child. After certain

allegations of failure to furnish details, it is ensured that the amount of Rs.75,000/- is indeed deposited by the appellant in his name and the name of the minor child with the Postal Department. However, when the arrangement as aforementioned turned futile, this Court has permitted conclusion of trial in C.C.No.440/2018.

5. A similar exercise is again attempted by this Court with orders in this regard on 22.08.2022, but for a shorter tenure. This exercise has also turned futile. Yet another arrangement on similar lines is made on 15.06.2023, and this Court must record that this has also turned futile with both appellant and the respondent reporting to this Court that they are not able to cohabit with the appellant saying that the respondent is not willing to cohabit but is only posturing and the respondent NC: 2023:KHC-K:5547-DB saying she cannot join the appellant because the son's studies will be disturbed.

6. After the proceedings on 15.06.2023, the respondent has filed an application under Section 25 of the H.M. Act for permanent alimony in a sum of Rs.10,00,000/- and for maintenance in a sum of Rs.10,000/- per month for the minor child. The appellant has filed statement of objections stating that he is willing to pay a sum of Rs.8,54,000/- which would be inclusive of a sum of Rs.2,00,000/- as marriage expenses and maintenance payable to the minor child at the rate of Rs.5,000/- per month for the period until the minor attains the age of majority. He has also stated that this amount of Rs.8,54,000/- would include the arrears of Rs.79,000/- payable in the pending execution case which remains stayed by this Court.

7. The admitted facts are that both the appellant and the respondent have completed their bachelor's degree in arts with further graduation/post-graduation. The NC: 2023:KHC-K:5547-DB appellant has completed his B.Ed. and the respondent has completed M.Ed. If the appellant has studied in Kannada medium, the respondent has studied in English medium. The appellant was employed as a Teacher with the Government even before marriage and the respondent, within two months of her marriage, was appointed as an English teacher with Morarji Desai school only to tender resignation upon receiving the appointment as a Teacher with the Government. The marriage between the appellant and the respondent is solemnized on 21.06.2012. The respondent was in the family way in the month of December 2012 but has undergone medical termination. Their minor son, Master Avanish, is born on 26.01.2015. The appellant and the respondent have lived together when the respondent was in the family way in the month of May, 2014.

8. If these are the admitted facts, the respective allegations are that the appellant contends that the respondent, because she was better educated and receiving higher salary, was condescendingly cruel in her NC: 2023:KHC-K:5547-DB behavior with him and his deceased mother. The respondent has walked out of the matrimonial home after coming to know she was in a family way the second time. The respondent, on the other hand, contends that the appellant was physically assaulting her doubting her chastity, and ultimately, he drove her out of the matrimonial home on 09.04.2017. She also contends that on 18.06.2018 he visited her at parental house and assaulted her insisting upon her to sign divorce papers. The appellant and the respondent have tendered their respective evidence to justify the rival claims.

9. The Family Court, which was considering questions such as whether the appellant proves that the respondent has treated him cruelly and whether she has deserted him continuously for a period of more than two years, has answered the questions in favour of the respondent dismissing the appellant's petition for divorce. The Family Court is persuaded to opine in favour of the respondent because of the allegations that the appellant insisting upon the respondent to undergo DNA test and NC: 2023:KHC-K:5547-DB that the respondent had filed a petition for restitution of conjugal rights. It is now stated that the petition for conjugal rights, which was pending as of the date of the Family Court's impugned judgment and decree, is presently allowed.

10. In the circumstances as aforesaid, the points for consideration are:

[a] Whether this Court can opine that the Family Court's impugned judgment requires any interference not just in the circumstances that are placed on record before the Family Court, but also the subsequent events as recorded at the first instance.

[b] If the answer to the afore question is in the affirmative, whether there must be any order under Section 25 of the H.M. Act.

11. The appellant and the respondent have repeatedly stated before this Court that they are willing to reconcile and resume matrimonial life but only to come back on each occasion to say that it is not possible, and of course, blaming the other. The appellant has also marked NC: 2023:KHC-K:5547-DB certain exchange of SMS [Ex.P-15]. It is seen from the exchange of these text messages, which are not seriously contested by the respondent but actually relied upon by her to say that she was asked to undergo DNA test, that neither the appellant nor the respondent have been cautious in commenting about the family members of the others. This Court must observe that certain remarks exchanged are very unbecoming, and this Court is of the considered opinion that the willingness to make allegations of such kind must have a definite bearing on the outcome in this appeal.

12. The respondent's mother is one of the witnesses examined in the criminal proceedings as seen in the judgment of the criminal Court in C.C.No.440/2018. This witness has been treated hostile in part by the learned Public Prosecutor. The criminal Court has opined that the evidence of the respondent's mother indicates that a false case could be foisted against the appellant inasmuch as the respondent has filed a complaint alleging that the accused had visited her at her parental home

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NC: 2023:KHC-K:5547-DB insisting upon her to sign papers for divorce notwithstanding the fact that legal notice had already been exchanged a year earlier and the appellant had filed the present case for divorce. This Court must opine that this conclusion, which is borne out by the records, could bespeaks of a tendency to make imputations against the appellant and subjecting him to cruelty.

13. It is trite that the allegations of cruelty must be examined in the facts and circumstances of the case as there cannot be a straitjacket formula or a description of what would amount to cruelty. If a propensity to make false allegations is seen in the respondent, it is also seen that the appellant is consistent in his case that the respondent would hardly reside with him saying she would not be able to attend to her work and also travel from matrimonial home to place of work. There is a definite material to conclude that the respondent may not have been a willing partner in the matrimony, and as such, a reason for feeling aggrieved. This Court must also observe that the appellant's case that his sisters are married and

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NC: 2023:KHC-K:5547-DB live separately, he lives with his mother aged 72 years and he cannot, as insisted by the respondents, establish a separate accommodation also has remained undisputed.

14. On a conjoint reading of these circumstances, this Court, in the peculiarities of this case, must opine that there must be interference with the Family Court's impugned judgment granting dissolution of marriage on the ground of cruelty under Section 13(1)(ia) of the H.M. Act but with the observation that this finding cannot, in any manner, affect the respondent otherwise than in this matrimonial dispute. The first question is answered accordingly.

15. This Court, in exercise of jurisdiction under Section 25 of the H.M. Act, must provide for such orders as would be just and reasonable on payment of alimony to the respondent having regard to the income of the appellant as well as the income of the respondent and their peculiar circumstances. The appellant and the respondent are both employed with the Government, and

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NC: 2023:KHC-K:5547-DB in fact, the respondent admittedly is better employed. The appellant has volunteered to pay a sum of Rs.2,00,000/-, though not as alimony but as reimbursement of marriage expenses. The respondent must have the advantage of this amount and a further sum of Rs.1,00,000/- as well so that there is reasonable amount towards permanent alimony.

16. There is no dispute that the respondent has the custody of the minor son Master Avanish and she could continue to have the custody of the minor son. The appellant is offering a sum of Rs.5,000/- per month and is willing to capitalize this amount for the period until the minor attains the age of majority. The appellant, including the arrears as of today and the capitalization as aforesaid, is willing to offer a sum of Rs.5,75,000/-. This amount must also be available to the respondent for the maintenance of the minor son, but without prejudice to seek enhancement as would be permissible in law if the occasion arises because of exigencies such as educational/medical expenses. There must be appropriate

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NC: 2023:KHC-K:5547-DB reservation of liberty in this regard. At this stage, this Court must record that the learned counsel for the respondent is categorical that the appellant will not be denied the right to visit the child during holidays but without him disturbing the education or harmony of the minor. In the light of the afore, the following:

ORDER

(i) The appeal is allowed, and the Family Court's impugned judgment dated 08.11.2019 in M.C.No.261/2017 is set aside. The marriage between the appellant and the respondent solemnized on 21.06.2012 is dissolved under Section 13(1)(ia) of the H.M. Act but subject to observation as made in the course of the order.

(ii) The appellant shall deposit a total sum of Rs.9,54,000/- (Rupees Nine Lakh Fifty Four Thousand Only) with the Registry within a period of four weeks, and the Registry is directed to disburse this amount to be utilized by the respondent for herself and for maintenance of the minor child Master

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NC: 2023:KHC-K:5547-DB Avanish at her discretion and subject to the right as reserved in the course of the order.

(iii) The appellant, apart from the deposit of the aforesaid sum, shall also take necessary measures to hand over the FD receipt for a sum of Rs.75,000/- but with that deposit being in the joint name of the respondent and the minor.

(iv) All the proceedings between the appellant and the respondent, consequent to this order, is directed to be closed.

Sd/-

JUDGE Sd/-

JUDGE SWK